

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ELMILOUDI ELMAAROUFI,

Index No.:

Purchased on:

Plaintiff,

SUMMONS

- against -

Plaintiff resides at:
Whitestone, NY

THE CITY OF NEW YORK and
POLICE OFFICER "JOHN" (first name
unknown) ANGADI,

Defendants.

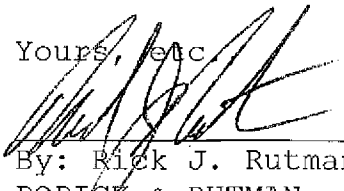
TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the day of service of within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of the venue designated is location of accident.

DATED: Queens, New York
January 16, 2018

Yours, etc



By: Rick J. Rutman, Esq.

POPICK & RUTMAN

Attorneys for Pltf.

136-31 41st Ave., Suite 8B

Flushing, NY 11355

718-321-7460

File No.: 7022

DEFENDANT'S ADDRESSES:

The City of New York
100 Church Street
New York, NY 10007

"John" Angadi
c/o 109th Pct.
37-05 union St.
Flushing, NY 11354

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ELMILAUDI ELMAAROUFI,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK and
POLICE OFFICER "JOHN"
(first name unknown) ANGADI

Defendants.

Plaintiff, by his attorneys, POPICK & RUTMAN,
complaining of the defendants herein, respectfully shows to
this Court, and alleges as follows:

1. That at all times hereinafter mentioned the
plaintiff, ELMILAUDI ELMAAROUFI, was and still is a resident of the
County of Queens, City and State of New York.
2. That the occurrence which gave rise to the
commencement of this action took place in the County of Queens, City
and State of New York.
3. That, upon information and belief, at all times herein
mentioned, THE CITY OF NEW YORK, was and still is a municipal
corporation duly organized and existing under and by virtue of
the laws of the State of New York.
4. That at all times hereinafter mentioned, and upon
information and belief, the defendant, "JOHN" ANGADI, was and

still is a resident of the County of Queens, City and State of New York.

5. That on or about the 24 day of January, 2017, and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to, by or on behalf of the plaintiff (then claimant), to be served upon the City of New York which said Notice of Claim set forth the name and post office address of the plaintiff herein (then claimant), the name of his attorneys, the nature of the claim, the time when, the place where and the manner in which the claim herein sued upon arose, and the items of damages and/or injuries claimed to have been sustained so far as then practicable.

6. That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the said Notice of Claim as aforesaid and adjustment and payment thereof has been neglected and/or refused by the defendant, THE CITY OF NEW YORK.

7. That a Hearing of this claim was held on 18th day of May, 2017 by the defendant, THE CITY OF NEW YORK.

8. That this action was commenced within one year and ninety (90) days after the happening of the event upon which the claim herein sued upon arose.

9. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a department of the City of New York duly organized and existing under by virtue laws of the State of New York.

10. That at all times hereinafter mentioned the Defendant "JOHN"(first name unknown) ARGADI was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

11. That at all time herein mentioned, the individual defendant was acting within the scope and course of his employment and relationship with the New York Police Department and under color of state law.

12. That at all times herein mentioned, all of the actions of individually named defendant alleged herein was done within the scope and course of their employment with the New York Police Department and under color of the state law.

13. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION

14. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

15. That on or about January 24, 2017 at or around 41st Ave and Main Street in Flushing, NY 11355 New York, the City, its agents, servants and employees, including but not limited to the officer, wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

16. That the aforesaid arrest, detention and imprisonment continued at various locations, including 109th Pct. 41st Ave. and Main Street, Queens New York.

17. That the said arrest, detention and imprisonment was caused by the City's agents, servants and employees, including but not limited to the police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

18. That the city, its agents, servants and employees, as set forth above, intended to confine plaintiff, that plaintiff was conscious of the confinement; and that the confinement was not otherwise privileged.

19. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and circumstances and was prevented and hindered from credit and circumstances and was prevented and hindered from performing and transacting his

necessary affairs and his business and employment, and was caused to suffer much pain in both mind and body, and to sustain economic loss and was otherwise damaged.

SECOND CAUSE OF ACTION

20. Plaintiff repeats and realleges each and every allegation contained in the First Cause of Action as if fully set forth at length herein.

21. That immediately prior to and during the course of his arrest and detention plaintiff was deprived of necessary clothing and exposed to conditions that caused him to become ill.

22. That by reason of the aforesaid plaintiff sustained personal injuries, endured and will endure pain and suffering and loss of enjoyment of life and economic loss, and was otherwise damaged.

THIRD CAUSE OF ACTION

23. Plaintiff repeats and realleges each and every allegation contained in the First and Second Causes of Action as if fully set forth at length herein.

24. That following his arrest, plaintiff was wrongfully, falsely and maliciously charged by defendants and prosecuted with various violations of which he was innocent.

25. That as a result thereof, plaintiff was required to appear in court to defend against these wrongful charges

26. That as a result thereof plaintiff's food cart was confiscated and plaintiff was deprived of his ability to earn income.

27. That on or about February 1, 2017 the aforesaid charges against plaintiff were dismissed.

28. That as a result of the aforesaid malicious prosecution, plaintiff was subjected to great indignities, humiliation ridicule was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business and employment, and was caused to suffer much pain in both mind and body and to sustain economic loss, and was otherwise damaged.

FOURTH CAUSE OF ACTION

29. Plaintiff repeats and realleges each and every allegation contained in the First, Second and Third Causes of Action as if fully set forth at length herein.

30. That the aforesaid actions, and resulting injuries to plaintiff, were due to the negligence of the City in the hiring, retention, and training of its employees, including the police officers involved in the arrest, assault and battery, and malicious prosecution of the plaintiff.

FIFTH CAUSE OF ACTION

31. Plaintiff repeats and realleges each and every allegation contained in the First, Second Third, and Fourth Causes of Action as if fully set forth at length herein.

32. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the state of New York, and his rights pursuant to 42 USC sec 1983 by those who, under color of a statute or regulation of a state, caused plaintiff to be deprived.

33. That the aforesaid by the detective officer and prosecutors were done pursuant to an official municipal policy or custom of the city, which policy involved the indiscriminate detention, interrogation, intimidation, and prosecution of individuals were engaged in criminal conduct, and for the purposes of thwarting the fair administration of justice.

34. That defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprived plaintiff of his federal civil and constitutional rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss in an amount that

exceeds the jurisdictional limits, of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact,, together with attorney's fees, and together with costs and disbursements.

Dated: Queens, New York
January 16, 2018

Yours, etc.



By: Rick J. Rutman
POPICK & RUTMAN
Attorney for Pltf.
136-31 41st Ave.
Suite 8B
Flushing, NY 11355

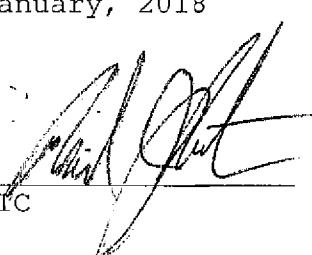
INDIVIDUAL VERIFICATION

State of New York, County of Queens

ELMILAUDI ELMAAROUFI, being duly sworn, deposes and says that deponent is the defendant in the within action; that he has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes it to be true.


ELMILAUDI ELMAAROUFI

Sworn to before me, this
22 day of January, 2018


NOTARY PUBLIC

RICK J. RUTMAN
NOTARY PUBLIC, STATE OF NEW YORK
NO. 02RU4881006
QUALIFIED IN NASSAU COUNTY
COMMISSION EXPIRES DEC. 1, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

ELMILOUDI ELMAAROUI,

Plaintiff(s),

- against -

THE CITY OF NEW YORK and POLICE OFFICER "JOHN" (first name unknown)
ANGADI,

Defendant(s).

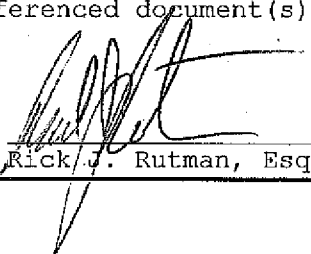
SUMMONS AND VERIFIED COMPLAINT

POPICK & RUTMAN, P.L.L.C.
Attys. for Pltf(s).
Office and Post Office Address
136-31 41st Avenue, Suite 8B
Flushing, NY 11355
718-321-7460

ATTORNEY CERTIFICATION

The undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information, belief and reasonable inquiry, the contentions contained in the above referenced document(s) are not frivolous,

Dated: Queens, New York
January 22, 2018


Rick J. Rutman, Esq.

TO:

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

NOTICE OF ENTRY:

PLEASE TAKE NOTICE that the within is a true copy of an order entered in the office of the Clerk of the above Court on

NOTICE OF SETTLEMENT:

PLEASE TAKE NOTICE that the within proposed order will be presented for settlement and entry at the Courthouse on at 10:00 a.m. at the office of the Clerk of the Part of this Court where the within described motion was heard.

Dated: Queens, New York

POPICK & RUTMAN
Attorney(s) for Pltf(s).
As Designated Above